

Background and Analysis

No opposition was filed. However, the opposing parties filed a Notice of Conditional Non-Opposition to Motion to Amend on August 18, 2026. The paper does not oppose leave but indicates that they “will assert challenges to some or all of the new claims in the proposed amended cross-complaint if leave to amend is granted.”

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Amend is GRANTED.
2. Dr. Nicholas’ second amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
3. The defendants may file a responsive pleading in accordance with all applicable law.
4. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
ATTORNEYS FEES AND COSTS
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

Plaintiff NextGear Capital, Inc. (“Plaintiff”) filed a Motion for Attorneys Fees on April 13, 2026 (the “Motion for Fees and Costs”). Plaintiff seeks an award of \$56,460.00 in attorneys’ fees plus \$17,580.72 in costs, not inclusive of any further fees incurred on this motion, as against defendants US City Auto Inc. and Farhad Aminzada (“Defendants”). The Motion for Fees and Costs was set for hearing on August 31, 2026. The motion is opposed.

Background

This matter was resolved by way of the granting of a Motion for Summary Adjudication as against Defendants as to the first, second, third and fifth causes of action, and awarded a judgment in favor of Plaintiff in the amount of \$1,488,052.52, as against both Defendants. See Declaration of Tom R. Normandin filed April 13, 2026 as part of the Motion for Fees and Costs (“Normandin Decl.”) ¶14; see also Minute Order dated April 2, 2026 (regarding February 23, 2026 hearing granting Summary Adjudication). The Court did not adjudicate the fourth cause of action for Conversion. See Minute Order dated April 2, 2026.

Analysis

No opposition has been filed and a Notice of Non-Opposition was filed by the moving party on August 26, 2026.

While the motion is not opposed, the Court concludes that it is not ripe. The fourth cause of action for Conversion has not been adjudicated and remains pending. No judgment has been entered. See Rule 3.1702 of the California Rules of Court (CRC); *Chen v. Valstock Ventures, LLC* (2022) 81 Cal.App.5th 957 (a trial court may not grant attorney’s fees to the party prevailing on a claim resolved on summary adjudication when other claims remain).

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is **DENIED**, without prejudice.
2. Plaintiff to prepare the order after hearing.

3. 9:00 AM CASE NUMBER: C25-02209
CASE NAME: BRASS DOOR RESTAURANT INCORPORATED VS. 8 TO 5 PROPERTIES LLC
CROSS COMPLAINT
FILED BY: BRASS DOOR RESTAURANT INCORPORATED
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendants, Shahla Azad, Seyed Ali Akbar Hejazian Yazdi, Mehrdad Hejazian, and Milad Hejazian to the cross-complaint filed by 8 to 5 Properties, LLC. **The demurrer is SUSTAINED, with leave to amend.** Any amended cross-complaint shall be filed and served on or before September 10, 2026.

A. Allegations and Background

8 to 5 Properties, LLC (“Landlord”), is the owner of commercial property in San Ramon (“premises”) consisting of a restaurant building, landscaping, sidewalks and a parking lot. The building houses The Brass Door, a steak house restaurant that has operated at that location for 60 years. The family of Landlord’s managing member, Nancy Schlesinger, has owned the premises for 78 years. (Cross-Complaint, ¶8.) On July 1, 2015, the original operator of The Brass Door and Landlord signed a new 10-year lease. (*Id.* at ¶9.) Soon after that, the business was sold to Shahla Azad and Seyed Ali Akbar Hejazian Yazdi. The original operator assigned the lease to them, with Landlord’s consent, on March 4, 2016. (See Cross-Complaint, Exhibits 1-2 [Lease and Assignment].) Milad and Mehrdad Hejazian are the “purported Manager” and self-proclaimed authorized “signatory” for Brass Door Restaurant. (Cross-Complaint, ¶¶4-5.)

During the Covid pandemic, “Individual Tenants” (a term not defined in the cross-complaint) approached the Landlord and requested rent relief, claiming severe financial hardship. Relying on these representations, Landlord executed a Temporary Addendum to the Lease on June 18, 2020, the effect of which was to reduce the amount owed to Landlord and require certain disclosures to Landlord. (See Cross-Complaint, ¶10, Exhibit 3 [Temporary Addendum].) When this addendum was signed, it was not disclosed that “Tenant/Individual Tenants” had already received or been approved for a Paycheck Protection Program loan of \$215,000 and ultimately received approximately \$2,000,000 in pandemic relief funds. (Cross-Complaint, ¶11.) Had Landlord been aware of this, Landlord would not have agreed to reduced rent. (*Ibid*)

“Tenant and Individual Tenants” benefited from \$62,832.36 in deferred rent. (Cross-Complaint, ¶12.) After Individual Tenants claimed to be suffering severe financial hardship, benefitted from the deferred rent, and received approximately \$2,000,000,00 from various pandemic relief funds, Individual Tenants purchased a property at 10 Hi Eagle Road, Alamo, California. (Cross-Complaint, ¶13.) Landlord believes the pandemic relief funds that were received by cross-defendants should have been paid to it, but were instead diverted to purchase the real property in Alamo. (*Ibid.*) The cross-complaint further alleges the property was transferred several times to hide the Individual